

Mongolia 2024 Human Rights Report

Executive Summary

There were no significant changes in the human rights situation in Mongolia during the year.

Significant human rights issues included credible reports of enforcement of criminal laws that constituted a serious restriction on freedom of expression and political speech.

The government took credible steps to identify and punish officials who committed human rights abuses.

Section 1. Life

a. Extrajudicial Killings

There were no reports the government or its agents committed arbitrary or unlawful killings during the year.

b. Coercion in Population Control

There were no reports of coerced abortion or involuntary sterilization on the part of government authorities.

Section 2. Liberty

a. Freedom of the Press

The law provided for freedom of expression, including for media members, but the government did not always respect this right. The government enforced criminal penalties for “spreading false information” and there was reported harassment of journalists.

Nongovernmental organizations (NGOs) and journalists reported the government used a clause in the criminal code on the dissemination of false information to intimidate critics of the government.

In December 2023, three individuals who posted photographs of themselves making an obscene gesture at the country’s president during a televised address were fined 100,000 tugriks (\$30) for violating a law limiting the rights of citizens to express their opinions.

Physical Attacks, Imprisonment, and Pressure

The Globe International Center reported continued pressure on media from police, politicians, and large business entities. In a survey released in May of 386 journalists on safety concerns, 31 percent reported summonses from courts, the police, or prosecutors, an increase from 28 percent in 2023; 14 percent reported confiscation of work equipment and belongings; 10 percent reported threats by email and telephone; and 14 percent reported

authorities physically or electronically searched personal and professional spaces in connection with investigations from 2022-2024.

In May journalist Bayarmaa Ayurzana was arrested and detained for 48 hours for “threatening to disseminate information that might cause serious damage” to the deputy prime minister. In January police raided Ayurzana’s home, seizing her cell phones, laptop, and a notebook containing a flash drive, which authorities held as of November. Between March 2021 and August 2022, Ayurzana’s investigations highlighted purported embezzlement schemes linked to former Deputy Prime Minister Sainbuyan.

Censorship by Governments, Military, Intelligence, or Police Forces, Criminal Groups, or Armed Extremist or Rebel Groups

The law set forth the principle that the state should not control or censor public information. Media organizations and NGOs representing journalists, however, reported pressure from the government, which penalized media organizations for reporting on disfavored items by limiting advertising and denying some outlets access to information. Individual journalists reported self-censorship due to fears of being summoned by police, courts, or prosecutors, or of losing employment due to the political affiliations of managers within their media organizations.

Voice of America reported that on July 19, a court sentenced N. Unurtsetseg, a prominent investigative journalist and editor in chief of the

online news site *Zarig*, to four years and nine months' imprisonment. Unurtsetseg was convicted of "spreading false information," tax evasion, money laundering, and illegal acquisition of state secrets; her trial was closed to the public because of the state secrets angle. A lawyer for Globe International Center stated Unurtsetseg's conviction was another example of how legal provisions concerning "spreading false information" and "illegal acquisition of state secrets" unduly restricted journalism and freedom of expression; Globe International Center and other journalists pointed to this prosecution as an example for why journalists self-censored. Unurtsetseg's appeal was heard on November 7 at the Capital City Appellate Court. The court upheld the ruling of the first-instance court.

In December 2023 the Communications Regulatory Committee blocked access for a few days to the news site *Zarig* based on a request by the National Police Agency that stated that the site was spreading false information.

b. Worker Rights

Freedom of Association and Collective Bargaining

The law provided for the right of workers to form or join independent unions and professional organizations of their choosing without previous authorization or excessive requirements. The law provided for the rights of all workers except those employed in essential services to participate in

union activities without discrimination, to conduct strikes, and to bargain collectively. The law required reinstatement of workers fired for union activity.

The right to strike had several constraints. The law prohibited third parties from organizing strikes. The decision to strike had to be supported by a majority of trade union members and a notice of the date, duration, and number of strikers had to be delivered to management at least five days before the intended date of strike. The law prohibited strikes unrelated to matters regulated by a collective agreement.

The government inconsistently enforced laws providing for the rights of collective bargaining and freedom of association. Penalties, largely fines, were not commensurate with those for similar violations of civil rights but were sometimes applied against violators. Labor dispute settlement committees resolved most disputes between individual workers and management. These committees comprised representatives of the local government, the employer, and the employee, joined by a representative of the Confederation of Mongolian Trade Unions (CMTU). The CMTU reported the court process was so lengthy many workers abandoned their cases due to time and expense. The CMTU reported some union organizers did not feel thoroughly protected by the law.

Although foreign migrant workers enjoyed the same rights as citizens according to the law, they reported they did not receive the same level of

protection against labor law violations as the general population.

Forced or Compulsory Labor

See the Department of State's annual *Trafficking in Persons Report* at <https://www.state.gov/trafficking-in-persons-report/>.

Acceptable Work Conditions

Wage and Hour Laws

The National Tripartite Committee, which comprised government, CMTU, and Federation of Employers representatives, established an annual national minimum wage that was above the poverty line. The law provided for a standard workweek of 40 hours and the payment of overtime, but payment of overtime was rarely enforced.

Occupational Safety and Health

Laws on labor, cooperatives, and enterprises established occupational safety and health (OSH) standards, which applied equally to local and foreign workers. OSH experts noted many standards were outdated and no longer appropriate for the main industries in the country. Whether OSH experts proactively inspected workplaces and identified unsafe conditions or only responded to workers' complaints was unknown. Workers had the right to remove themselves from situations that endangered their safety without jeopardy to their employment.

Wage, Hour, and OSH Enforcement

The government did not effectively enforce minimum wage, overtime, and OSH laws. The Ministry of Labor and Social Protection enforced the law in the public sector, but the CMTU reported many workers in the private sector received less than the wage promised by their employers, particularly at smaller companies in rural areas. Workers in the construction sector, in which work was constrained to a few months each year due to extreme winters, were sometimes pressured to work long hours, increasing the risk of accidents and injuries.

Fines imposed on companies for not complying with labor standards or for concealing accidents were not commensurate with those for similar crimes such as fraud or negligence and officials acknowledged fines did not compel management compliance. Penalties were sometimes applied against violators.

In 2023 the Mongolian Labor Inspectorate was re-integrated into the Ministry of Labor and Social Protection with 162 labor inspectors. Labor inspectors assigned to the Ministry of Labor and Social Protection's regional and local offices were responsible for enforcement of all labor regulations and had the authority to compel immediate compliance. The ministry reported its inspectors, faced with large investigative workloads, needed better training on investigative techniques and evidence collection. While unannounced inspections were allowed under the labor law, a competing

law on inspections required notification to employers at least 48 hours in advance. Inspections were usually done after advance notification, although some preventative assessments were completed without prenotification. Inspectors had the power to impose sanctions.

According to 2023 data from the National Statistics Office, the informal sector employed 472,877 persons, or 38.9 percent of all employed workers. The revised labor law covered workers in the informal sector, although it was inconsistently enforced. The law on pensions allowed small family businesses and workers in the informal economy, such as herders, to participate in pension and social benefit programs. These categories of workers were able to access health care, education, social entitlements, and an optional form of social security.

c. Disappearance and Abduction

Disappearance

There were no reports of enforced disappearances by or on behalf of government authorities.

Prolonged Detention without Charges

The quasigovernmental National Human Rights Commission (NHRC) reported that when conducting investigations, investigative agencies occasionally detained suspects without judicial authorization, sometimes

secretly, and police employed such practices despite the availability of other methods of restraint, including bail and another person's personal guarantee. According to the UN Working Group on Arbitrary Detention, data provided by the government showed arrests were often performed without warrants.

d. Violations in Religious Freedom

See the Department of State's annual *International Religious Freedom Report* at <https://www.state.gov/religiousfreedomreport/>.

e. Trafficking in Persons

See the Department of State's annual *Trafficking in Persons Report* at <https://www.state.gov/trafficking-in-persons-report/>.

Section 3. Security of the Person

a. Torture and Cruel, Inhuman, or Degrading Treatment or Punishment

The law prohibited such practices. Nevertheless, the NHRC and NGOs reported some prisoners and detainees were subjected to unnecessary force and cruel, inhuman, or degrading treatment or punishment, particularly to obtain confessions.

Responsibility for investigating allegations of torture and abuse was assigned to either local police or the Independent Authority Against Corruption, with the anti-corruption authority generally responsible for crimes committed while on duty. The prosecutor's office oversaw such investigations.

The NHRC reported that to coerce or intimidate detainees, authorities sometimes made access to legal counsel difficult. Human rights NGOs and attorneys reported obstacles to gathering evidence of torture or abuse. For example, although many prisons and detention facilities had cameras for monitoring prisoner interrogations, authorities often reported the equipment was inoperable at the time of reported abuses.

Under the criminal code, all public officials were subject to prosecution for abuse or torture, including both physical and psychological abuse. The maximum punishment for torture was a five-year prison sentence, or life in prison if the victim died as a result of torture. Although officials were liable for intentional infliction of severe bodily injury, prosecutions of this crime were rare. The law stated prohibited acts did not constitute a crime when committed in accordance with an order given by a superior in the course of official duties and without knowledge the act was prohibited. A person who knowingly enforced an illegal order was considered an accomplice to the crime. The law provided that the person giving an illegal order was criminally liable for the harm caused.

Impunity was sometimes a problem in the security forces. As of September, the National Police Agency reported investigating 15 complaints of rape, 23 complaints of causing intentional injury to others' health, and five complaints of torture perpetrated by public officials. The NHRC, lawyers, human rights activists, and NGOs noted investigations of criminal acts committed by security forces and law enforcement personnel were frequently handled internally, with the most serious penalty being termination of employment rather than criminal conviction.

In November 2023, a conscript serving in Unit 326 of the Mongolian Armed Forces was found dead after reporting for duty only 22 days earlier. The conscript's death led to considerable public discussion of harsh treatment and hazing of recruits in the armed forces, with prior victims coming forward and sharing their stories. The unit commander was dismissed from his position in November 2023. As of October, the investigation into the conscript's death continued.

b. Protection of Children

Child Labor

See the Department of Labor's *Findings on the Worst Forms of Child Labor* at <https://www.dol.gov/agencies/ilab/resources/reports/child-labor/findings/>.

Child Marriage

The legal minimum age for marriage was 18, with court-approved exceptions for children ages 16 to 18 with the consent of parents or guardians.

c. Protection to Refugees

The government cooperated with the Office of the UN High Commissioner for Refugees (UNHCR) and other humanitarian organizations in providing protection and assistance to UNHCR-recognized refugees, asylum seekers, and other persons of concern.

Provision of First Asylum

Although the law provided for granting asylum, the process was seldom implemented. Rather, the government provided limited protections to foreign nationals in the country while UNHCR adjudicated their refugee claims.

d. Acts of Antisemitism and Antisemitic Incitement

The Jewish population was very small, and there were no reports of antisemitic incidents.

e. Instances of Transnational Repression

Unlike in previous years, there were no reports the government knowingly cooperated with other governments to facilitate their acts of transnational repression.

Knowing Cooperation with Other Governments to Facilitate Their Acts of Transnational Repression

According to media and NGOs, in May 2023 prominent Inner Mongolian author and historian Lhamjab Borjigin, a citizen of the People's Republic of China who was placed under "residential surveillance" and fled to Mongolia in March 2023, was removed from his home in Ulaanbaatar by PRC police allegedly working in conjunction with Mongolian authorities and forcibly returned to China.